

Builders Quotient (BQ) -- Legal Review Summary

What We Need

We need confirmation that our three published legal documents -- Terms of Service, Privacy Policy, and Biometric Data Retention Policy -- are compliant with Texas state law and applicable U.S. federal law. This is a publicly accessible web application, so users may be located in any state. As long as users consent to these documents before participating, we need to be confident that we are legally permitted to collect the data described below -- in particular, video and audio recordings that contain biometric data from users who may be minors (ages 15--17).

The three documents are linked at the bottom of this summary.

What BQ Is

Builders Quotient is an online psychometric assessment built by Austin Christian University. Users watch case studies drawn from real entrepreneur interviews and respond verbally via their webcam. Their video and audio responses are transcribed and scored by AI tools against expert rubrics. A separate personality quiz (Likert-style, no recording) rounds out the profile. Results are delivered by email and text message.

The product serves as both a public lead-generation tool and an admissions assessment for prospective ACU students.

What Data We Collect

From the user directly (after the assessment, at the results gate):

- Email address, first name (optional), phone number
- Whether they are a prospective student or general interest
- Optional marketing opt-ins for SMS and email

Recorded during the assessment:

- Webcam video and audio of their spoken responses (up to 12 short recordings per session, each 10--180 seconds)
- Personality quiz selections (121 items, no recording)

Collected automatically:

- One-way hash of IP address, browser fingerprint, and user agent (for anti-cheating and consent records)
- UTM campaign parameters from the referring URL
- Behavioral signals (tab switches, copy attempts) for assessment integrity

Generated by AI processing:

- Transcribed text from audio
- Assessment scores

Important note: No personally identifiable information (name, email, phone) is collected until after the assessment is complete. A user who abandons mid-assessment has no PII stored -- only anonymous recordings and session data.

Biometric Data

The video and audio recordings inherently contain biometric data -- specifically **voiceprints** (from audio) and **facial geometry** (from video). We do not extract or store these as standalone biometric templates, but the raw recordings from which they can be derived are stored and transmitted to AI providers for processing. Under Texas and Illinois biometric data statutes, this is sufficient to trigger compliance obligations.

Retention: All video and audio recordings are deleted 1 year after assessment completion. Backups are purged within 90 days after that.

No sale or sharing: Biometric data is never sold, leased, traded, or shared for profit.

AI Processing

Recordings are sent to third-party AI services for transcription and scoring. These providers are contractually prohibited from retaining user data or using it to train their models. All processing occurs in the United States. User data is never used to train general-purpose AI models.

Consent Mechanisms

Before recording begins, every user must pass through a consent screen with three required checkboxes:

1. Agreement to the Privacy Policy and Terms of Service
2. Consent to video and audio recording
3. Consent to collection of biometric identifiers (voiceprint, facial geometry), with a link to the Biometric Data Policy

All three must be checked before the user can proceed. The system stores a timestamped consent record for each, including a version identifier that is bumped whenever the consent language changes.

After the assessment, optional marketing consent checkboxes (SMS and email) are presented, unchecked by default.

Minor Users

BQ's audience includes **high school juniors and seniors** (typically ages 15--17) who are prospective ACU students. These minors provide video and audio recordings that contain biometric data.

- **Age floor:** 13 years old, enforced by Terms of Service representation. No date of birth is collected.
 - **Parental awareness:** Users under 18 must represent that a parent or guardian is aware of and consents to their use. There is no technical verification of this.
 - **Key question for legal counsel:** Whether a minor's own consent is legally sufficient for biometric data collection under TX CUBI and IL BIPA, or whether parental consent is required.
-

Published Legal Documents

Document	URL
Terms of Service	https://bq.austinchristianu.org/terms

Privacy Policy	https://bq.austinchristianu.org/privacy
Biometric Data Retention Policy	https://bq.austinchristianu.org/biometric-policy